

**** Report on the Problems Faced During Drafting Article 370 ****

Generated: November 16, 2025

REPORT ON THE PROBLEMS FACED DURING DRAFTING ARTICLE 370

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Report: The Challenge of Temporariness in Article 370

The inclusion of Article 370 in the Indian Constitution under Part XXI, titled "Temporary, Transitional, and Special Provisions," was the source of significant debate and legal challenges throughout its existence.

****1. The Ambiguity of "Temporary":**** The most significant issue was the interpretation of the word "temporary." The article was intended to be a transitional provision to define the relationship between India and the state of Jammu & Kashmir until the state's own Constituent Assembly could finalize its constitution and decide on its future. However, after the J&K Constituent Assembly dissolved in 1957 without recommending the abrogation of Article 370, the provision continued indefinitely, leading to a de-facto permanence that was legally contested.

****2. The Role of the State Constituent Assembly:**** The article's own mechanism for its abrogation, specified in clause (3), required the recommendation of the Constituent Assembly of Jammu & Kashmir. The dissolution of this body created a legal vacuum. The central question, which was recently settled by the Supreme Court, was whether the power to abrogate the article was extinguished with the assembly's dissolution. The court ultimately concluded that the President's power to declare the article inoperative persisted.

****3. Complexities in Legislative Power:**** The drafting of the article created a unique and complex legislative relationship. While Parliament could legislate on matters of Defence, Foreign Affairs, and Communications, its power over other subjects required the "concurrence of the State Government." This framework led to a separate and distinct constitutional status for the state, which was a point of political and legal friction.

In summary, the primary problem was not a lack of consensus during its drafting but rather the legal and political ambiguity embedded within its temporary nature. This led to decades of debate over its permanence and the eventual legal maneuvering required for its abrogation, as seen in the Presidential Order of 2019 which amended Article 367 to reinterpret the term "Constituent Assembly."

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